

[REDACTED]  
Huntsville, AL 35803  
February 28, 1992

[REDACTED]  
Chattanooga, TN 37402

Dear Mr. [REDACTED],

I received your letter Wednesday containing the amended inventory for my mother's estate from my brother. I have reviewed it, and I sure hope there is some money left in a CD. Using my brother's figures, it looks like I've been ripped off more than I had expected. I have provided my comments and update pages for my previous documentation, based on this inventory. In particular, the comments on Page ii have been completely revised.

The amended inventory did not include any documentation for his figures, or account for any disbursements. I do not trust Fred's accounting of the estate, and would like to see his bank statements for the estate account, and his personal accounts if necessary. I feel that is the only way to really know just where the estate stands.

Please proceed with whatever is necessary to get this estate settled as soon as possible. Thanks for your assistance.

Sincerely yours,

Eddie Lawhorn

## Comments on the Amended Estate Inventory

### Real Property

|            |           |                                                                                                                                                                                                              |
|------------|-----------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| House      | 20,390.97 | OK, see Pages 31 - 32                                                                                                                                                                                        |
| Farm       | 61,626.00 | OK, see Page 33                                                                                                                                                                                              |
| 16.5 Acres | 13,355.67 | That's about twice what I had previously figured, but my estimate was based on the IRS form on Page 34, which may have been for my half only. This is new information, and I haven't seen any documentation. |
| 12 Acres   | 4,000.00  | Very optimistic. This property was on the market for a year without selling. I am curious to know if Fred has paid the property taxes on this land.                                                          |

### Money

|                   |           |                                                                                                                                                  |
|-------------------|-----------|--------------------------------------------------------------------------------------------------------------------------------------------------|
| First Fed Saving  | 2,509.71  | Was balance as of January 2, 1990. See Page 8 for updated balance.                                                                               |
| Money Market      | 21,874.12 | Was balance as of January 2, 1990. Balance as of 01/04/92 was \$3688.13. See my accounting for this account on Pages 40 - 72, and Pages 73 - 94. |
| First Fed CD      | 14,600.16 | See Page 1. Balance on 04/01/90 was 14,939.47                                                                                                    |
| Security (Sovran) | 724.16    | OK, See Pages 9 - 22                                                                                                                             |
| US Courthouse CU  | 3,709.68  | Balance as of 01/02/90 was 3444.40. See Pages 23 - 30 for updated balances.                                                                      |

## Personal Property

|                  |        |                                                   |
|------------------|--------|---------------------------------------------------|
| House furnishing |        | OK                                                |
| Car Sale         | 700.00 | New information, have not seen any documentation. |

## Debts due Estate

|                    |          |                                                                                                                                   |
|--------------------|----------|-----------------------------------------------------------------------------------------------------------------------------------|
| Mr/Mrs. [REDACTED] | 6,463.50 | Subject to verification, but balance on 1/90 was \$6,233.33, balance on 1/92 was \$5,285.33. See Pages 37 - 39                    |
| [REDACTED]         | 1,500.00 | Had assumed \$1,200.00 earlier, based on Fred's letter on Page 35. This is new information, and I haven't seen any documentation. |

## **Fred Lawhorn should account for the following:**

### **Bank Accounts**

First Federal account # [REDACTED] Pages 1 - 2  
\$14,939.47 - from First Federal Maturity Notice for 04/19/90 Page 1

First Federal account # [REDACTED] Pages 3 - 8  
\$2,596.15 - from First Federal statement of 09/30/90 Page 8

Sovran Bank account # [REDACTED] Pages 9 - 22  
\$724.61 - from Sovran Bank Counter Check on 09/22/90 Page 21

Credit Union account # [REDACTED] Pages 23 - 30  
\$3,890.40 - from [REDACTED] letter of 01/23/92 Page 30

### **Land Sales**

House and 3 Acres Pages 31 - 32  
\$20,390.97 - from Century 21 Seller Statement of 11/10/90 Page 31

Totty's Bend farm Page 33  
\$61,626.00 - from Century 21 Seller Statement of 10/26/90 Page 33

Totty's Bend 16.5 Acres Page 34A  
\$13,355.67 - from Amended Inventory Page 34A

### **Miscellaneous**

Mr. [REDACTED]'s last payment Page 34B  
\$1,500 - from Amended Inventory Page 34B

Sale of 1975 Pontiac Page 34A  
\$700.00 - from Amended Inventory Page 34A

Meriwether Lewis Electric Cooperative Page 35A  
\$4.55 Refund of 12-20-90 Page 35A

Interest accrued while in control of the funds  
\$ (unknown)

Approximate amount to account for: \$119,727.82

## Payments received by Eddie Lawhorn:

12/03/90 - \$41,058.49 - from Fred Lawhorn letter of 12/03/90 Page 35

Breakdown as follows:

|             |                                                                                                                                        |
|-------------|----------------------------------------------------------------------------------------------------------------------------------------|
| \$30,263.00 | Farm sale. Note that this conflicts with the amount from the Century 21 Seller Statement on Page 33 and the Amended Inventory Page 34A |
| \$10,195.49 | House sale                                                                                                                             |
| \$600.00    | Mr. [REDACTED]'s last payment. Note that this conflicts with the Amended Inventory Page 34B.                                           |

05/04/91 - \$6,550.00 - from Greenfield Bank Cashier's Check Page 36

Total received by Eddie Lawhorn: \$47,608.49

Please note the conflicts between the figures for the 12/03/90 disbursement for the farm sale and Mr. [REDACTED]'s payment on page 35, and the figures for these items on the Amended Inventory on pages 34A and 34B. From the Amended Inventory figures, it should have been \$30,813.00 for the farm sale, \$10,195.49 for the House sale, and \$750.00 for Mr. [REDACTED]'s payment, for a total of \$41,758.49 instead of the \$41,058.49.

Please note the conflict between the figures for the 05/04/91 disbursement as shown on page 36, and the figure on the Amended Inventory on page 34A. I am now assuming the payment was for my share of the 16.5 Acres on Totty's Bend Road. From the Amended Inventory figures, it should have been \$6,677.83 instead of the \$6,550.00.

This would indicate that I have received less than my share for the land sales, and nothing at all from the bank accounts and miscellaneous money from the estate.

To sum up, I should have received one-half of approximately \$119,727.82 (as shown on Page i), that is \$59,863.91. I received \$47,608.49, as documented above. I should receive approximately \$12,255.42 additionally. This is in addition to my share of the additional estate assets: the 12 acres in Pleasantville, the payments from Cleveland, the money in the RFCU account in Huntsville, and the rumored CD. Please note that these figures can only be approximated, since I still have no faith in Fred's accounting, and they do not include any interest earned while Fred held the money.

Because of the discrepancies on the disbursements I received, the variation between versions of the estate inventory, and Fred's various statements on how much money remains in the estate, I feel I cannot trust Fred's accounting for the estate unless he provides adequate documentation.

## **Accounting of funds handled by Eddie Lawhorn:**

On the following pages I will account for the funds to which I had access:

Cleveland payments Pages 37 - 39

First Federal account # [REDACTED] Pages 40 - 72

Redstone Federal Credit Union (RFCU) account # [REDACTED] Pages 73 - 94  
This is a local account used only for the estate

### **Notes:**

Redstone Federal Credit Union does not return cancelled checks. Copies of cancelled checks are supposed to be available from RFCU, for a fee. For my documentation, I used the bank statements for RFCU account [REDACTED] and my personal checking account (RFCU acct. # [REDACTED]), my check registers, receipts from the bank, and bills. I did not make copies of everything, since I feel I have included sufficient detail for the important items and this package is getting quite large. Please contact me if you have questions, or would like copies of additional documentation.

## **Items remaining in the estate:**

|                                                                         |                                                                                                 |
|-------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------|
| Money remaining in Certificate of Deposit<br>Pledged to Greenfield Bank | \$ Unknown, undocumented but<br>rumored to exist on Page 34D.                                   |
| Money in [REDACTED]'s client trust account                              | \$3890.46 Page 30                                                                               |
| Money in RFCU acct # [REDACTED]                                         | \$3688.13 as of 01/04/92<br>Page 77                                                             |
| Payments from the property in Cleveland, TN                             | Balance is \$5285.33 (subject to<br>verification) as of 02/92 Page 39<br>Payments are irregular |
| 12 Acres at Pleasantville in Hickman County, TN                         | Was on market for a year without<br>selling                                                     |

COPY

34 A

02/28/92

IN THE PROBATE COURT FOR HICKMAN COUNTY, TENNESSEE  
AMENDED

INVENTORY OF ALL THE GOODS AND CHATTELS OF  
THE ESTATE OF LOU ANNA LAWHORN, DECEASED

REAL PROPERTY:

House and furnishings located  
at Route #1, Box 249, Lyles,  
Tennessee, Hickman County \$20,390.97

Farm located at Totty's Bend  
in Hickman County, Tennessee \$61,626.00

16-1/2 acres of land located at  
Totty's Bend Road in Hickman  
County, Tennessee \$13,355.67

12 acres of land located at  
Pleasantville, Hickman County,  
Tennessee \$4,000.00

MONEY:

First Federal Savings Bank  
Savings Account \$2,509.71

Money Market Account with  
son, Eddie Lawhorn \$21,874.12

First Federal Savings Bank  
Certificate of Deposit  
(Pledged to Greenfield Banking  
Company \$10,000.00 only) \$14,600.16

Security Bank and Trust  
Checking Account \$724.61

U. S. Courthouse Credit Union  
Savings Account \$3,709.68

PERSONAL PROPERTY: \$1,730.00

Four sets of dishes  
Assorted pots and pans  
Two bedroom suites  
Cedar clothes chest  
Piano  
China cabinet  
Assorted tools  
Clothes  
Photo albums  
Washer  
Freezer  
Two living room suites

1975 Pontiac (Freddie Lawhorn  
collected money) \$700.00

TOTAL INVENTORY: \$145,220.92

02/23/92

## DEBTS DUE ESTATE:

Mr. & Mrs. [REDACTED]  
(Collection ongoing by  
Eddie Lawhorn)

\$6,463.50

[REDACTED]  
(Collected by Freddie  
Lawhorn)

\$1,500.00

*Freddie Lawhorn*  
FREDDIE LAWHORN, CO-  
EXECUTOR

[REDACTED] CO-EXECUTOR

[REDACTED]  
[REDACTED] ATTORNEY FOR  
CO-EXECUTORS

STATE OF TENNESSEE  
COUNTY OF \_\_\_\_\_

Personally appeared before me, the undersigned, a Notary Public in and for said County and State, the within named FREDDIE JOE LAWHORN, Co-Executor of the Estate of Lou Anna Lawhorn, deceased, who being duly sworn, deposed and said that the foregoing is a just, true and perfect inventory of all and singular, the goods and chattels of Lou Anna Lawhorn, deceased, that have come or should have come to his hands, to the best of his knowledge, information and belief.

*Freddie Joe Lawhorn*  
FREDDIE JOE LAWHORN

SWORN to and subscribed before me on this the 11th  
day of January, 1991.

[REDACTED]  
Notary Public

My Commission Expires:

1-18, 1994

34c

02/28/92

STATE OF [REDACTED]  
COUNTY OF [REDACTED]

Personally appeared before me, the undersigned, a Notary Public in and for said County and State, the within named [REDACTED] Co-Executor of the Estate of Lou Anna Lawhorn, deceased, who being duly sworn, deposed and said that the foregoing is a just, true and perfect inventory of all and singular, the goods and chattels of Lou Anna Lawhorn, deceased, that have come or should have come to his hands, to the best of his knowledge, information and belief.

[REDACTED]  
SWORN to and subscribed before me on this the 3  
day of Feb, 1992. [REDACTED]

[REDACTED]  
Notary Public

My Commission Expires:

331, 19 92

34D

02/28/92

LAW OFFICES

CHATTANOOGA, TENNESSEE 37402

February 25, 1992

Mr. Eddie Lawhorn

Huntsville, AL 35803

In re: Estate of Lou Anna Lawhorn

Dear Eddie:

I am enclosing a copy of the amended inventory of your mother's estate which was sent to me by [REDACTED]. In a recent telephone conference with [REDACTED] he advised me that the Greenfield Banking Company was holding a \$10,000.00 Certificate of Deposit issued by First Federal Savings Bank as collateral for the down payment on Freddie's house. Mr. [REDACTED] pointed out that this \$10,000.00 plus the \$3,700.00 which he took over from Freddie is approximately the amount of money your records indicate Freddie owes you.

Please compare this information with your information to advise me of any discrepancies.

If the discrepancies are minimal, I believe we can go forward to close out your mother's estate and have the remaining monies which are owed you paid from the estate.

If you have questions, please call me.

Very truly yours,

AWS.sih  
Enclosures  
File Ref: WP/LAWHORN.AWS

## Cleveland, TN Payments

Income from the Cleveland payments was divided with my brother Fred, as indicated below.

|                |          |                                                                                                  |
|----------------|----------|--------------------------------------------------------------------------------------------------|
| 12/89 \$188.00 |          |                                                                                                  |
| 01/90 \$188.00 | 02/03/90 | Check # 2260 Fred Lawhorn \$188.00                                                               |
| 03/90 \$94.00  | 03/10/90 | Check #1830 Fred Lawhorn \$35.00<br>\$35.00 to Eddie Lawhorn<br>\$24.00 to RFCU estate account   |
| 04/90 \$188.00 | 05/04/90 | Check # 2410 Fred Lawhorn \$94.00                                                                |
| 06/90 \$188.00 | 07/16/90 | Check # 2537 Fred Lawhorn \$94.00                                                                |
| 08/90 \$188.00 | 09/14/90 | Check # 2769 Fred Lawhorn \$94.00                                                                |
| 11/90 \$188.00 | 11/30/90 | Check # 2599 Fred Lawhorn \$94.00 - not cashed,<br>reissued 07/29/91 # 3915 Fred Lawhorn \$94.00 |
| 03/91 \$188.00 | 03/23/91 | Check # 2964 Fred Lawhorn \$94.00                                                                |
| 08/91 \$282.00 | 09/24/91 | Check # 3946 Fred Lawhorn \$141.00                                                               |
| 10/91 \$282.00 | 10/09/91 | Deposited to RFCU estate account                                                                 |
| 12/91 \$188.00 | 01/04/91 | Deposited to RFCU estate account                                                                 |
| 02/92 \$376.00 | 02/92    | Deposited to RFCU estate account                                                                 |

The loan balance is being checked by Mr. [REDACTED] of [REDACTED] Realty in Cleveland, Tennessee (see Pages 38 - 39). They receive 6% of the payment for collection. The payments are supposed to be \$100 per month, but they have been quite irregular.

My brother and I had agreed that I should handle the payments, since I live much closer to Cleveland. Also, I was already familiar with the record keeping since I had been helping our mother keep track of the payments for several years.